

Court No. - 40

Case :- WRIT - C No. - 27634 of 2023

Petitioner :- Ravi Karan Singh Patel

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manvendra Nath Singh

Counsel for Respondent :- C.S.C.,Gaurav Singh

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Surendra Singh-I,J.

1. Heard learned counsel for the petitioner; Ms. Uttara Bahuguna, learned Addl. Chief Standing Counsel for State respondents and Shri Gaurav Singh, learned counsel for Electricity Department.

2. Present writ petition has been preferred for a direction to respondent no.2 i.e. Executive Engineer, Urban Electricity Distribution Division, Banda to provide electricity connection in the shop of the petitioner situated at Maheshwari Devi Road, Banda and to decide the representation of the petitioner dated 6.12.2022 within stipulated period.

3. It is contended that the petitioner is tenant of the shop in question and the landlord has disconnected the electricity of the shop, which is adversely affecting his business. It is contended that being tenant he is entitled for electricity connection. In support of his submissions, he has placed reliance on the judgment in **Narayan Prasad v. State of U.P. & Ors.**, 2021 (1) ARC 654, wherein, it is held that the petitioner being occupier of the premises in question as a tenant has a legal right to obtain electricity connection and the respondents licensee is under an obligation to give connection for supply of electrical energy and the same cannot be refused solely for want of consent of the landlord of the premises.

4. On the other hand, learned counsel for the respondent contended that full fledged mechanism is provided under the Electricity Act, 2003 and Electricity Supply Code, 2005 (in short "the Code") and remedial measures are provided in detail in Annexure 4.2 and Clause 4.4 (a) (i) of the Code. Once efficacious remedy is available to the petitioner, there is no reason or occasion to interfere in the matter.

5. Considering the facts and circumstances of the case, without expressing any opinion on merits of the issue and with the consent,

the writ petition stands **disposed of** with observation that in case the petitioner moves appropriate application and complete requisite formalities as per law within ten days, the authority concerned would process and finalise the claim of the petitioner as per law within further one week.

Order Date :- 25.8.2023

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